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File No.: EXP202304438

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) requested GOOGLE LLC (hereinafter, the respondent) to delete his data from several URLs

***URL.1

***URL.2

***URL.3

***URL.4

***URL.5

“(1) This Twitter account publishes five screenshots of an Instagram account (which Instagram itself has deleted for violating its Community Guidelines) regarding accusations of rape, sexual predation, abuse, harassment, and sexual assault; abuse of women under alcohol and other substances. Using my full name repeatedly (2) These accusations have no legal basis and are defamatory. There has been no judicial complaint made, nor is there an active processing ongoing over this year and seven months. I have legal documentation from the Central Register of Sexual Offenders and Human Trafficking of the Ministry of Justice, where NO SEXUAL RECORDS are listed. Furthermore, according to this account, the accusations state that: “(...)” To this day, I have faced various professional and personal consequences directly linked to this situation. My full name is associated with (...). The related Google search “A.A.A. complaint,” the screenshots, and the Twitter link significantly harm my professional career, as it links this false complaint with my name. Generating losses of (...) and professional ties that have damages both in the present and in the future, as this information remains present on Google.”

The claimant states that on July 4, 2021, the Twitter account ***ACCOUNT.1, attributed to (...) published five screenshots of an anonymous Instagram account ***ACCOUNT.2 (which the claimant states does not currently exist, as Instagram has deleted it for violating its community guidelines) linking his name and surname with (...).

The claimant provides a request addressed to Google, dated February 9, 2023, and a Certificate of Non-existence of Sexual Records issued on December 28, 2022, by the Central Register of Sexual Offenders and Human Trafficking, along with screenshots reflecting the index of results from GOOGLE when entering his full name.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated that, on April 4, 2023, it responded to the claimant, justifying the denial of his request. It states that “(...) it has re-examined Mr. A.A.A.'s request and, regarding four of the URLs subject to his complaint, has verified that as of today, those URLs do not even appear among the results of the Google search when searching based on the interested party's name. (...)

The remaining URL subject to Mr. A.A.A.'s complaint refers to information that seems to present relevance and public interest.

Regarding the remaining search result subject to the interested party's complaint, this party considers that it refers to information that presents undeniable relevance and public interest. In particular, the controversial search result refers to a tweet published by the Twitter user ***USER.1 through which a complaint is disseminated regarding alleged behaviors of (...) carried out by the interested party.

Moreover, the text reproduced in the tweet warns that this series of abusive behaviors would not be exclusive to the interested party but (...). Consequently, in order to prevent that, in the future, (...), the complaint note highlights the need for a social reaction, which would first involve making cases like that of the interested party public.

(...) Inadmissibility of the “right to be forgotten” when the processing is necessary to exercise the right to freedom of expression and information.

In its Judgment of May 13, 2014 (“Costeja Judgment”), the Court of Justice of the European Union (“CJEU”) declared that blocking search results, as requested by Mr. A.A.A., may constitute an interference with the legitimate interest of users potentially interested in accessing the information in question. (...)”

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the claims of the claimant to be satisfied. Consequently, on July 3, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days it could present the allegations it deemed appropriate. This entity indicated, in summary, that “(...) Google LLC has re-examined the content of the web pages to which the search results refer. 3/10

disputed searches and has reconsidered its initial decision. Consequently, Google LLC has proceeded with the requested blocking (...)”

FOURTH: After examining the document submitted by the responding party, it is transferred to the claiming party, so that, within a period of fifteen working days, they may formulate the allegations they deem appropriate, without any allegations having been made within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on July 3, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the

rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. Once this period has elapsed, the interested party may consider their complaint to be upheld."

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with this procedure the guarantees and rights of the claimant are duly restored.

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to address such requests.

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request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the responsible party. The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to be Forgotten

The right to be forgotten is provided for in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, concerning the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

"1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained following a search carried out based on their name the published links containing information related to that person when they are inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information. Similarly, action must be taken when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the Internet search service. This right will persist even when the retention of the information published on the website to which the link refers is lawful and it has not been deleted beforehand or simultaneously."

As stated in the Supreme Court Judgment of January 11, 2019, "This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of unity of the Constitution, the limits derived

from the respect for other fundamental rights are applicable, among which the freedom of information proclaimed in Article 20 of the Constitution is of particular relevance."

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates the Internet user's access to certain web pages. To do this, the tool accesses a list of previously indexed links and offers the user a list of web addresses that refer to pages containing the words selected by the user.

The Judgment of the Court of the European Union of May 13, 2014 states the following:

Paragraph 28: (...) "by exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, which it subsequently extracts, records, and organizes in the...

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framework of its indexing programs, retains on its servers and, where applicable, communicates and facilitates access to its users in the form of search result lists. Since these operations are explicitly and unconditionally covered in Article 2, letter b), of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine manager also performs the same operations with other types of information and does not distinguish between these and personal data.

Paragraph 33: "However, the search engine manager is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out within this framework and, consequently, must be considered responsible for such processing under the aforementioned Article 2, letter d."

Paragraph 35: "In this regard, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that carried out by website publishers, which consists of displaying such data on a webpage, and is added to it."

Consequently, the Court of Justice considers that the search engine manager is responsible for the processing of data by determining the purposes and means of its activity.

Regarding the possibility of exercising the right to erasure before the Internet search engine without resorting to the website manager, the Court of Justice of the European Union, in its Judgment of May 13, 2014, (Case C-131/12), stated:

"(...) a data processing (...) carried out by the manager of a search engine, can significantly affect the fundamental rights of respect for private life and protection of personal data when the search conducted using that search engine is carried out based on the name of a natural person, since such processing allows any internet user to obtain through the list of results a structured view of the information relating to this person that may be found on the Internet, which potentially affects a multitude of aspects of their private life, which, without that engine, would not have been interconnected or would have been very difficult to do so, thereby allowing the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied due to the significant role that the Internet and search engines play in modern society, which confer a ubiquitous character to the information contained in such a list of results (see, in this regard, the judgment in eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45)."

"The Court of Justice maintains that the removal of links from the list of results based on the name of the natural person affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union."

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"(...) to respect the rights established by these provisions, provided that the requirements set forth therein are genuinely met, the operator of a search engine is obliged to remove from the list of results obtained from a search conducted using a person's name links to web pages published by third parties that contain information related to this person, even in the event that this name or this information is not deleted prior to or simultaneously from these web pages, and, where applicable, even if the publication on such pages is lawful in itself."

Consequently, the processing of personal data carried out by the search engine operator allows for a "name" to yield a list of results that provide information about a person that may affect their private sphere. Once the interested party has submitted their request for the deletion of their personal data to the search engine, it must examine it and proceed, if applicable, to delete the specific links from the list of results, without the need to first or simultaneously approach the website owner.

Furthermore, it is also deduced from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

For the purpose of carrying out the balancing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that the so-called "right to digital oblivion," which is a specification in this field of the rights derived from the quality requirements of personal data processing, does not protect the construction of a past tailored to one's liking, obliging web publishers or search engine operators to delete the processing of their personal data when associated with facts that are not considered positive.

It also does not justify that those who publicly expose themselves can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, eliminating negative information from the Internet, "positioning" the results of Internet searches at their whim, so that the most favorable ones occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country."

The doctrine collected in the ruling of the National Court, of June 21, 2019, is also relevant, which specifies, in its fifth legal basis, the following, in relation to information related to the professional life of the interested party:

(...) "General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in accessing information in a search concerning a person's name and the fundamental rights of the same, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is...

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justified by the predominant interest of the public in having, as a result of this inclusion, access to the information in question.

In the case at hand, entering into the weighing of the rights and interests at stake, it must first be taken into account that it refers to the professional life of the claimant, a businessman, and not to personal life, as this is very relevant for modulating the intensity that the protection of the right regulated in Article 18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015.

In this regard, it is appropriate to refer to the guidelines of the Working Group of 29 on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on "Google Spain and Inc v. AEPD and Mario Costeja C-131/12), which states: "There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's

private life (...) information is more likely to be relevant if it relates to the professional life of the interested party, but it will depend on the nature of the interested party's work and the legitimate interest of the public in having access to that information through a search by their name (...)." When the information refers to private individuals, the Constitutional Court has declared that "even when the news concerning the subject matter relates to public interest, not all its content is protected by the freedom of information—in this case, freedom of expression—, but it may be deemed disproportionate to transmit those facts that, within the news, affect the honor or intimacy of the concerned person and that are revealed as 'manifestly unnecessary and irrelevant to the public interest'" (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5). Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time that has elapsed. On this issue, the National Court declared in its judgment dated November 8, 2017, the following: "Moreover, unlike the first link, an excessive amount of time has not elapsed between the date on which the cancellation request was made to the search engine and the date of the publication of the news. Indeed, since the date the news was published (August 2011) and the date on which the right of cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the terms that apply in this case and as previously stated, does not affect this conclusion."

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in its paragraph 93 the following: "even an initially lawful processing of accurate data may, over time, become incompatible with that Directive when these data are no longer necessary in relation to the purposes for which they were collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer relevant or are excessive in relation to these purposes and the time elapsed."

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Conclusion

Once the documentation in the file has been examined, it is observed that after conducting a search based on the name of the claimant, a list of results appears that includes the questioned URLs, publishing information and personal data that are not of public interest. Therefore, the right to data protection of the claimant must prevail over the right to freedom of expression and information. Maintaining the dissemination of the information may discredit the personal life of the claimant, affecting the rights to honor, privacy, and protection of personal data. Thus, it is understood that the processing of data is not necessary, resulting in an infringement of the fundamental right regarding the private life of the claimant. For all these reasons, the personal data from the disputed URLs must be de-indexed and should not be accessible through an internet search concerning the name of the claimant, in order to avoid the dissemination of information that may be harmful to the invoked rights, with the autonomous right to data protection prevailing over freedom of expression and information, as it lacks relevance and public interest.

In the case analyzed here, once the documentation in the file has been examined, it is noted that, although it is true that the respondent denied the right to deletion of several URLs exercised by the claimant, considering that they referred to information that seemed to present relevance and public interest, during the processing of this procedure, the respondent has reconsidered its decision and has proceeded to block the requested URLs, which no longer appear.

Therefore, with the new measures adopted by the respondent, the rights of the affected party are duly restored, and consequently, it is appropriate to uphold the present claim on formal grounds, as the request has been addressed extemporaneously, without the need for additional actions.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds, the claim made by Mr. A.A.A. against GOOGLE LLC.

However, it is not appropriate to issue a new certification by the respondent, as the response has been issued extemporaneously, without the need for additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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